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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**
+ CRL.M.C. 2188/2022 and Crl.M.A. No.9264/2022

VIJAY KUMAR AND ORS Petitioners
Through: Ms.Sonika Tyagi, Advocate with
petitioners in person.

versus

STATE OF NCT OF DELHI AND ANR Respondents
Through: Mr.Tarang Srivastava, APP for State
with SI Sumit
Mr.Ayub Khan, Advocate for R-2
with R-2 in person.

CORAM:
HON'BLE MS. JUSTICE ANU MALHOTRA

ORDER
23.08.2022

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The petitioners, vide the present petition seek the quashing of the FIR No. 444/2016 Police Station Sangam Vihar registered under Sections 406/498A/34 of the Indian Penal Code, 1860 submitting to the effect that a settlement has been arrived at between the petitioners and the respondent no.2 pursuant to which the marriage between the petitioner no.1 and the respondent no.2 has since been dissolved vide a decree of divorce dated 7.4.2022 in HMA No. 22/478 through mutual consent under Section 13 B(2) of the Hindu Marriage Act, 1955 of the Court of the Principal Judge, Family Courts, South Saket and all claims of the respondent no.2 have since been settled by the payment of the total settled sum of Rs.7,50,000/- by the petitioners to the respondent no.2 of which a sum of Rs. 4,50,000/- has been paid previously during the course of the proceedings under Section 13B(1)

and 13B(2) of the Hindu Marriage Act, 1955 and the balance sum of Rs.3,00,000/- has been handed over to her today in Court during the course of the present proceedings in the form of a Demand draft bearing No. 203745 dated 20.08.2022 drawn on the Karnataka Bank Limited in favour of the respondent No.2 and thus no useful purpose would be served by the continuation of the proceedings in relation to the present FIR.

The deputed Investigating Officer of the case is present and has identified the petitioner nos.1 to 4 i.e. petitioner no.1 , namely, Vijay Kumar, Ajay, Premvati and Rani present today in Court as being the four accused arrayed in FIR No. 444/2016 Police Station Sangam Vihar registered under Sections 406/498A/34 of the Indian Penal Code, 1860 and has also identified the respondent no.2 Ms.Nisha as being the complainant of the said FIR.

The respondent no.2 in her deposition on oath in replies to specific Court queries has affirmed the factum of having signed her affidavit dated 29.4.2022 as the non-opposition to the prayer made by the petitioners to the present petition seeking quashing of FIR No. 444/2016 Police Station Sangam Vihar registered under Sections 406/498A/34 of the Indian Penal Code, 1860, the settlement document dated 9.6.2021 executed between her and the petitioner No.1 as well as the Memorandum of Understanding dated 4.6.2022 executed between her and the petitioners voluntarily of her own accord without any duress, pressure or coercion from any quarter. The respondent No.2 further states that in terms of the settlement the marriage between her and the petitioner No.1 has since been dissolved vide a decree of divorce dated 7.4.2022 in HMA No. 22/478 through mutual consent under Section 13 B(2) of the Hindu Marriage Act, 1955 of the Court of the

Principal Judge, Family Courts, South Saket. The respondent No.2 further submitted that there is no child born of the wedlock between her and the petitioner No.1 and that pursuant to the settlement she has received a total settled sum of Rs.7,50,000/- from the petitioners of which a sum of Rs. 4,50,000/- has been received by her previously and the balance sum of Rs.3,00,000/- has been handed over to her today in Court during the course of the present proceedings in the form of a Demand draft bearing No. 203745 dated 20.08.2022 drawn on the Karnataka Bank Limited in her name. The respondent no.2 further submits that there are now no claims of hers left against the petitioners thus she does not oppose the prayer made by the petitioner Nos. 1 to 4, namely, Vijay Kumar, Ajay, Premvati and Rani seeking quashing of the FIR No. 444/2016 Police Station Sangam Vihar registered under Sections 406/498A/34 of the Indian Penal Code, 1860, nor does she want them to be punished in relation thereto.

In reply to a specific Court query the respondent No.2 submitted that she has studied till Standard VIII, that she has made her statement voluntarily of her own accord without any duress, pressure or coercion from any quarter after understanding the implications of the statement made by her and that she does not need to think again.

On behalf of the State, there is no opposition to the prayer made by the petitioners seeking the quashing of the FIR in question in view of the deposition of the respondent no.2 and the settlement arrived at between the parties.

In view of the deposition of the respondent no.2, non-opposition on behalf of the State, identification of the petitioners and the respondent no.2 by the deputed Investigating Officer of the case and the settlement that has

been arrived at between the parties, in as much as, the FIR has apparently emanated from a matrimonial discord between the petitioner no.1 and the respondent no.2 which has since been resolved by the dissolution of their marriage vide a decree of divorce through mutual consent aforementioned and as there appears no reason to disbelieve the statement made by the respondent no.2 that she has arrived at a settlement with the petitioners voluntarily of her own accord without any duress, coercion or pressure from any quarter, for maintenance of peace and harmony between the parties it is considered appropriate to put a quietus to the litigation between the parties in terms of the verdict of the Hon'ble Supreme Court in **Narender Singh &Ors. V. State of Punjab; (2014) 6 SCC 466** wherein it has been observed vide paragraph 31(IV) to the effect:-

“31. In view of the aforesaid discussion, we sum up and lay down the following principles by which the High Court would be guided in giving adequate treatment to the settlement between the parties and exercising its power under [Section 482](#) of the Code while accepting the settlement and quashing the proceedings or refusing to accept the settlement with direction to continue with the criminal proceedings:

(I)

(II)

(III)

(IV) On the other, those criminal cases having overwhelmingly and pre-dominantly civil character, particularly those arising out of commercial transactions or arising out of matrimonial relationship or family disputes should be quashed when the parties have resolved their entire disputes among themselves.

.....”

and in view of the observations of the Hon'ble Supreme Court in **Gian**

Singh vs. State of Punjab & Another, (2012) 10 SCC 303, to the effect : -

“58..... No doubt, crimes are acts which have harmful effect on the public and consist in wrongdoing that seriously endangers and threatens the well-being of the society and it is not safe to leave the crime-doer only because he and the victim have settled the dispute amicably or that the victim has been paid compensation, yet certain crimes have been made compoundable in law, with or without the permission of the court. In respect of serious offences like murder, rape, dacoity, etc., or other offences of mental depravity under IPC or offences of moral turpitude under special statutes, like the Prevention of Corruption Act or the offences committed by public servants while working in that capacity, the settlement between the offender and the victim can have no legal sanction at all. **However, certain offences which overwhelmingly and predominantly bear civil flavour having arisen out of civil, mercantile, commercial, financial, partnership or such like transactions or the offences arising out of matrimony, particularly relating to dowry, etc. or the family dispute, where the wrong is basically to the victim and the offender and the victim have settled all disputes between them amicably, irrespective of the fact that such offences have not been made compoundable, the High Court may within the framework of its inherent power, quash the criminal proceeding or criminal complaint or FIR if it is satisfied that on the face of such settlement, there is hardly any likelihood of the offender being convicted and by not quashing the criminal proceedings, justice shall be casualty and ends of justice shall be defeated. The above list is illustrative and not exhaustive. Each case will depend on its own facts and no hard-and-fast category can be prescribed.**” [Refer to *B.S. Joshi*, (2003) 4 SCC 675; *Nikhil Merchant*, (2008) 9 SCC 677 and *Manoj Sharma*, (2008) 16 SCC 1.]”

and in view of the verdict of the Hon’ble Supreme Court in ***Jitendra***

Raghuvanshi &Ors. Vs. Babita Raghuvanshi &Anr. (2013) 4 SCC 58, to the effect : -

“15. In our view, it is the duty of the courts to encourage genuine settlements of matrimonial disputes, particularly, when the same are on considerable increase. Even if the offences are non-compoundable, if they relate to matrimonial disputes and the Court is satisfied that the parties have settled the same amicably and without any pressure, we hold that for the purpose of securing ends of justice, Section 320 of the Code would not be a bar to the exercise of power of quashing of FIR, complaint or the subsequent criminal proceedings.

16. There has been an outburst of matrimonial disputes in recent times. The institution of marriage occupies an important place and it has an important role to play in the society. Therefore, every effort should be made in the interest of the individuals in order to enable them to settle down in life and live peacefully. If the parties ponder over their defaults and terminate their disputes amicably by mutual agreement instead of fighting it out in a court of law, in order to do complete justice in the matrimonial matters, the courts should be less hesitant in exercising their extraordinary jurisdiction. It is trite to state that the power under Section 482 should be exercised sparingly and with circumspection only when the Court is convinced, on the basis of material on record, that allowing the proceedings to continue would be an abuse of process of court or that the ends of justice require that the proceedings ought to be quashed....”

(emphasis supplied),

In view thereof, FIR No. 444/2016 Police Station Sangam Vihar registered under Sections 406/498A/34 of the Indian Penal Code, 1860 and all consequential proceedings emanating therefrom against the petitioner

nos. 1 to 4, namely, Vijay Kumar, Ajay, Premvati and Rani are thus quashed.

The petition is disposed of accordingly.

ANU MALHOTRA, J

AUGUST 23, 2022

IN THE HIGH COURT OF DELHI: NEW DELHI

Item No. 6

CrI. M.C. 2188/2022

VIJAY KUMAR & ORS . Vs. STATE OF NCT OF DELHI & ANR.

CW-1 SI SUMIT POLICE STATION SANGAM VIHAR

ON S.A.

I have been deputed to attend the proceedings qua the FIR No. 444/2016 Police Station Sangam Vihar registered under Sections 406/498A/34 of the Indian Penal Code, 1860 . I identify the petitioners No.1 to 4, namely, Vijay Kumar, Ajay, Premvati and Rani present in the Court today as being the four accused arrayed in the FIR in question. I identify the respondent no.2 as being the complainant of the FIR in question.

RO & AC
23.08.2022

ANU MALHOTRA, J

IN THE HIGH COURT OF DELHI: NEW DELHI

Item No. 6

Crl. M.C. 2188/2022

VIJAY KUMAR & ORS . Vs. STATE OF NCT OF DELHI & ANR.

**CW-2 NISHA D/O SH. ROHAN SINGH R/O H.No.44, GALI No. 15,
RATIYA MARG, SANGAM VIHAR, NEW DELHI**

On S.A.

My affidavit dated 29.4.2022 as the non-opposition to the prayer made by the petitioners to the present petition seeking quashing of FIR No. 444/2016 Police Station Sangam Vihar registered under Sections 406/498A/34 of the Indian Penal Code, 1860 and the settlement document deed dated 9.6.2021 executed between me and the petitioner No.1 as well as the Memorandum of Understanding dated 4.6.2022 executed between me and the petitioners bear my signatures thereon which I have signed voluntarily of my own accord without any duress, pressure or coercion from any quarter.

In terms of the settlement the marriage between me and the petitioner No.1 has since been dissolved vide a decree of divorce dated 7.4.2022 in HMA No. 22/478 through mutual consent under Section 13 B(2) of the Hindu Marriage Act, 1955 of the Court of the Principal Judge, Family Courts, South Saket. There is no child born of the wedlock between me and the petitioner No.1. In terms of the settlement a total settled sum of Rs.7,50,000/- had to be paid to me by the petitioners of which I have received a sum of Rs. 4,50,000/- from the petitioners previously and the balance sum of Rs.3,00,000/- has been handed over to me today in Court

during the course of the present proceedings in the form of a Demand draft bearing No. 203745 dated 20.08.2022 drawn on the Karnataka Bank Limited in my name. There are now no claims of mine left against the petitioners. I thus do not oppose the prayer made by the petitioner Nos. 1 to 4, namely, Vijay Kumar, Ajay, Premvati and Rani seeking quashing of the FIR No. 444/2016 Police Station Sangam Vihar registered under Sections 406/498A/34 of the Indian Penal Code, 1860, nor do I want them to be punished in relation thereto.

I have studied till standard VIII. I have made my statement voluntarily of my own accord without any duress, pressure or coercion from any quarter after understanding the implications of it. I do not need to think again.

RO & AC
23.08.2022.

ANU MALHOTRA, J